

25PSCV03186 25PSCV03186

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Case Number: 25PSCV03186 Hearing Date: September 4, 2026 Dept: H

Starnes v. Arrow

Inn Motel, et al.,

Case No. 25PSCV03186

ORDER ON

DEMURRER AND MOTION TO STRIKE

1. Defendant Tai-Eng Discount Co. dba Azusa

Arrow Inn's Demurrer to Plaintiff's Complaint is OVERRULED as to the first and second causes of action and SUSTAINED as to the third cause of action.

2. Defendant Tai-Eng Discount Co. dba Azusa

Arrow Inn's Motion to Strike is GRANTED in part as to punitive damages and prejudgment interest.

Background

Plaintiff

Linell Starnes ("Plaintiff") alleges that on September 4, 2024, Plaintiff sustained injuries and damages arising from a physical assault that occurred while Plaintiff was a guest at or around 469 E. Arrow Hwy. in Azusa ("the premises").

On

September 3, 2025, Plaintiff filed a complaint, asserting negligence and premises liability causes of action against Arrow Inn Motel, Howard Johnson by Wyndham Azusa, Tai Eng Discount Co., Inc., and Nayan Gandhi, and Does 1- 25.

A Case

Management Conference and an Order to Show Cause Re: Failure to File Proof of Service are set for hearing on September 4, 2026.

Pending

before the Court is the demurrer filed by Defendant Tai-Eng Discount Co. ("Defendant").

Legal Standard

A

demurrer may be made on the grounds that the pleading, inter alia, does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

"A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905 [citations omitted].) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) "[A] demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction placed on an instrument pleaded therein, or facts impossible in law, or allegations contrary to facts of which a court may take judicial knowledge." (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 [citations omitted].)

Meet and Confer

A declaration must be filed with a demurrer regarding the results of the meet and confer process. (Code Civ. Proc. §430.41(a)(3).) Code of Civil Procedure section 430.41, subdivision (a) [demurrer] and 435. 5, subdivision (a) [motion to strike] requires that before filing a demurrer or motion to strike, the moving party meet and confer "in person, by telephone, or by video conference" in an attempt to resolve a demurrer's deficiencies five days before the responsive pleading is due. (Code Civ. Proc. § 430.41, subd. (a)(2); Code Civ. Proc., § 435.5, subd. (a).)

Here, Derek S. Yee, counsel for

Defendant, states that he sent Plaintiff's counsel a letter on April 20, 2026, left a voicemail on April 27, 2026, and left a message with a receptionist on April 28, 2026. (Yee Decl., ¶¶ 3–5.) The Court finds that Defendant has satisfied the meet and confer requirement.

Discussion

Defendant demurs, pursuant to Code of Civil Procedure section 430.10, subdivision(e), to Plaintiff's complaint, on the basis that it fails to state facts sufficient to constitute a cause of action.

Merits

Defendant contends that Plaintiff's first and second causes of action for general negligence and premises liability, respectively, fails because Plaintiff fails to allege the duty and scope of duty Defendant owed to Plaintiff.

"To state a cause of action for negligence, a plaintiff must allege (1) the defendant owed the plaintiff a duty of care, (2) the defendant breached that duty, and (3) the breach proximately caused the plaintiff's damages or injuries." (Lueras v. BAC Home Loans Servicing, LP (2013) 221 Cal.App.4th 49, 62.) "The elements of a cause of action for premises liability are the same as those for negligence." (Jones v. Awad (2019) 39 Cal.App.5th 1200, 1207 [internal quotations and citation omitted].)

Here, the Court concludes that Plaintiff has pled sufficient facts to support both general negligence and premises liability causes of action. Plaintiff alleges that he was a guest on the premises, that Defendant negligently owned and maintained the property, and that Defendant was aware of prior violent conduct, indicating a risk of violence. Defendant contends that he was "merely a landlord" and did not participate in the motel's management, supervision, or operation. However, at the demurrer stage, the Court must accept all well-pled facts as true. As such, the Court determines that Plaintiff's allegations are sufficient to support causes of action for negligence and premises liability. The demurrer is overruled as to the first and second causes of action

Defendant next attacks Plaintiff's cause of action labeled "other" (i.e., Item "10.f. other"), arguing that Plaintiff has failed to allege sufficient facts to support the cause of action and that the cause of action is entirely "ambiguous and unintelligible." The Court agrees that Plaintiff's third cause of action for "other" is ambiguous and unintelligible. The demurrer is sustained to the extent that it is directed at the third cause of action labeled "other."

At the time of hearing, the Court will hear from Plaintiff as to whether Plaintiff will request leave to amend to add any other causes of action; it appears as though Plaintiff only opposes the demurrer in this respect to the extent that it would disturb the negligence and premises liability causes of action.

Motion to Strike

Defendant moves to strike the following items from Plaintiff's complaint: (1) Page 3, section 10.f "[x] Other (specify): Defendants, Arrow Inn Motel, Howard Johnson by Wyndham Azsua, Tai-Eng Discount Co. Inc., Nayan Gandhi, and each of them, are in some manner legally responsible for the injuries and damages, complained of herein. Plaintiff will amend this complaint with additional causes of action at such times as discovery reveals the other reasons for said legal responsibility;" (2) the request for prejudgment interest; and (3) the request for punitive damages.

Beginning with the request to strike the "other" cause of action, the Court denies the motion to strike as moot, based upon the Court's ruling on the demurrer.

Turning to the request to strike punitive damages, a plaintiff can recover punitive damages in tort cases where "the defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294, subd. (a).) Punitive damages thus require more than the mere commission of a tort. (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166 (Grieves).) "In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

Defendant argues that all claims for punitive damages should be stricken because Plaintiff's complaint fails to adequately allege malice, oppression, and fraud against Defendant. The Court agrees. Defendant's motion to strike punitive damages is granted.

Finally, turning to prejudgment interest, Defendant moves to strike Plaintiff's prayer for prejudgment interest under Civil Code section 3287, on the grounds that there are no facts alleged showing that Plaintiff's damages are certain or readily ascertainable because such damages are inherently uncertain in a personal injury action. Prejudgment interest applies where "damages are certain or capable of being made certain by calculation." (Civil Code § 3287, subd. (a).) "The test for recovery of prejudgment interest under section 3287, subdivision (a) is whether defendant (1) actually knows the amount of damages owed plaintiff, or (2) could have computed that amount from reasonably available information." (KGM Harvesting Co. v. Fresh Network (1995) 36 Cal.App.4th 376, 391.)

The Court agrees that, as currently pled, there are no facts showing that Plaintiff's damages are certain and readily ascertainable.

Accordingly, the Court grants Defendant's motion to strike as to Plaintiff's prayer for prejudgment interest.